

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

-----X
DAVID ROSS, SHAUN TAYLOR, IBRAHIM ALBEDAWI, and
MUHAMMAD ALBEDAWI,

Plaintiffs,

-against-

CITY OF NEW YORK, PAUL FAZIO, UNDERCOVER
POLICE OFFICER SHIELD # 105, JOSEPH RYAN,
JAMES MALPESO, STACY MEIGS, MICHAEL FRIEDMAN
STEPHEN RIVAS, ANTHONY REYES, UNDERCOVER
POLICE OFFICER # 109, UNDERCOVER POLICE OFFICER #
210, and JOHN and JANE DOE 1 through 10, individually and in
their official capacities, (the names John and Jane Doe being
fictitious, as the true names are presently unknown),

Defendants.

**AMENDED
COMPLAINT**

11 CV 1958
(FB)(VVP)

Jury Trial Demanded

-----X
Plaintiffs DAVID ROSS, SHAUN TAYLOR, IBRAHIM ALBEDAWI, and
MUHAMMAD ALBEDAWI, by their attorneys, Leventhal & Klein, LLP, complaining of the
defendants, respectfully allege as follows:

PRELIMINARY STATEMENT

1. Plaintiffs bring this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. §§ 1981, 1983 and 1988 for violations of their civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States. Plaintiffs also assert supplemental state law claims.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§ 1981, 1983 and 1988, and the Fourth and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is found upon 28 U.S.C. §§1331, 1343 and 1367.

VENUE

4. Venue is properly laid in the Eastern District of New York under 28 U.S.C. § 1391(b), in that this is the District in which the claim arose.

JURY DEMAND

5. Plaintiffs respectfully demand a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38 (b).

PARTIES

6. Plaintiff DAVID ROSS is a twenty-eight year old African American man residing in Bronx, New York.

7. Plaintiff SHAUN TAYLOR is a thirty-one year old African American man residing in Staten Island, New York.

8. Plaintiff IBRAHIM ALBEDAWI is twenty-six year old African American man residing in Staten Island, New York.

9. Plaintiff MUHAMMAD ALBEDAWI is a twenty-seven year old African American man residing in Staten Island, New York.

10. Defendant CITY OF NEW YORK was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

11. Defendant CITY OF NEW YORK maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the aforementioned municipal corporation, CITY OF NEW YORK.

12. That at all times hereinafter mentioned, the individually named defendants, PAUL FAZIO, UNDERCOVER POLICE OFFICER SHIELD # 105, JOSEPH RYAN, JAMES MALPESO, STACY MEIGS, MICHAEL FRIEDMAN, STEPHEN RIVAS, ANTHONY REYES, UNDERCOVER, POLICE OFFICER # 109, UNDERCOVER POLICE OFFICER # 210, and JOHN and JANE DOE 1 through 10, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

13. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State of New York and/or the City of New York.

14. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant CITY OF NEW YORK.

FACTS

15. On April 20, 2010, at approximately 3:00 p.m. plaintiffs SHAUN TAYLOR and MUHAMMAD ALBEDAWI were lawfully present in front of 41 Van Duzer Street, Staten Island, New York, when the defendant NYPD officers approached the plaintiffs, grabbed them, pushed them against a police van, and placed handcuffs on their wrists.

16. The defendants searched plaintiff SHAUN TAYLOR by patting him down and searching inside his pockets.

17. The defendants searched plaintiff MUHAMMAD ALBEDAWI, by patting him down, searching inside his pockets, and by reaching under his underwear and touching his rectal

and genital areas.

18. The defendant officers did not find any contraband on either plaintiff SHAUN TAYLOR or plaintiff MUHAMMAD ALBEDAWI.

19. The defendants placed plaintiffs SHAUN TAYLOR and MUHAMMAD ALBEDAWI inside a police van and imprisoned them therein.

20. On April 20, 2010, at approximately 3:00 p.m., plaintiffs DAVID ROSS and IBRAHIM ALBEDAWI were lawfully present inside DAVID ROSS' apartment located at 41 Van Duzer Street, Staten Island, New York.

21. The defendant officers unlawfully entered plaintiff DAVID ROSS' building and without permission or a warrant, broke plaintiff ROSS' apartment door, and entered his apartment with their guns drawn.

22. The defendant officers pointed their guns at plaintiffs DAVID ROSS and IBRAHIM ALBEDAWI in the presence of plaintiff ROSS' two year old son.

23. The defendant officers asked plaintiff ROSS' son the location of any drugs and threatened to shoot plaintiff ROSS' dog.

24. The defendant officers forcefully pushed plaintiff IBRAHIM ALBEDAWI to the ground, patted him down, searched inside his pockets, and handcuffed him.

25. The defendant officers handcuffed plaintiff DAVID ROSS and searched him, by patting him down and searching inside his pockets.

26. The defendant officers searched plaintiff DAVID ROSS' apartment.

27. The defendant officers did not recover any contraband from plaintiff DAVID ROSS nor IBRAHIM ALBEDAWI'S persons or from said apartment.

28. Nonetheless, the defendant officers escorted plaintiffs DAVID ROSS and

IBRAHIM ALBEDAWI out of the apartment.

29. Plaintiff DAVID ROSS was placed against his will in the police van with plaintiffs SHAUN TAYLOR and MUHAMMAD ALBEDAWI.

30. The defendant officers detained plaintiff IBRAHIM ALBEDAWI in front of 41 Van Duzer Street.

31. The defendant officers detained plaintiff IBRAHIM ALBEDAWI and MUHAMMAD ALBEDAWI at said location until releasing them without filing any criminal charges against them.

32. The defendants imprisoned plaintiffs DAVID ROSS and SHAUN TAYLOR in the police van for approximately two hours, and thereafter transported said plaintiffs to the NYPD 120th police precinct and imprisoned them therein.

33. In the precinct, defendant officers subjected plaintiff DAVID ROSS to a humiliating and unlawful strip search. The defendant officers compelled plaintiff to remove his clothing, lower his underwear to his ankles, squat, cough, and lift his genitals.

34. The defendants imprisoned plaintiffs DAVID ROSS and SHAUN TAYLOR until their arraignments in Richmond County Criminal Court on baseless criminal charges filed against plaintiffs based on the false allegations of defendants FAZIO and UNDERCOVER POLICE OFFICER SHIELD # 105. The defendants initiated said prosecution with malice, and otherwise caused said prosecution to be commenced against plaintiffs for the purpose of obtaining a collateral objective outside the legitimate ends of the legal process, to wit: to cover up the above mentioned abuse of authority or other unlawful reasons.

35. As a result of the malicious prosecution, Judge Alan J. Meyer set bail on plaintiffs DAVID ROSS and SHAUN TAYLOR, and said plaintiffs were thereafter imprisoned.

36. Plaintiff SHAUN TAYLOR was imprisoned on Rikers Island until on or about April 26, 2010.

37. Plaintiff DAVID ROSS was imprisoned on Rikers Island and in the Manhattan Detention Complex until November 22, 2010.

38. During the approximately two-hundred and sixteen days of which plaintiff DAVID ROSS was incarcerated, defendant CITY OF NEW YORK, its agents, employees and officers, deliberately disregarded his serious medical needs. Specifically, plaintiff DAVID ROSS suffers from a heart condition which requires daily medications, including Coumadin, Digoxin, Coreg, Lisinopril, and Metopirone. That during his period of incarceration, plaintiff DAVID ROSS was caused to miss his daily medications on approximately thirty occasions. That this caused plaintiff DAVID ROSS to suffer physical and emotional distress.

39. The malicious prosecution compelled plaintiffs DAVID ROSS and SHAUN TAYLOR to appear in Richmond County Criminal Court on approximately six occasions until October 27, 2010, when the baseless charges levied against plaintiffs were dismissed and sealed in Richmond County Criminal Court.

40. Defendant REYES supervised defendants FAZIO, UNDERCOVER POLICE OFFICER SHIELD # 105, RYAN, MALPESO, MEIGS, FRIEDMAN, RIVAS, UNDERCOVER POLICE OFFICER # 109, and UNDERCOVER POLICE OFFICER # 210, and approved of, oversaw, and otherwise presided over the defendants' arrest and prosecution of the plaintiffs.

41. Defendants FAZIO, UNDERCOVER POLICE OFFICER SHIELD # 105, RYAN, MALPESO, MEIGS, FRIEDMAN, RIVAS, REYES, UNDERCOVER POLICE OFFICER # 109, and UNDERCOVER POLICE OFFICER # 210 either directly participated in

and/or failed to intervene in the illegal conduct described herein.

42. All of the above occurred as a direct result of the unconstitutional policies, customs or practices of the City of New York, including, without limitation, the inadequate screening, hiring, retaining, training, and supervising of its employees.

43. The aforesaid event is not an isolated incident. Defendant CITY OF NEW YORK is aware (from lawsuits, notices of claims, and complaints filed with the NYPD's Internal Affair Bureau, and the CITY OF NEW YORK'S Civilian Complaint Review Board) that many NYPD officers, including the defendants, are insufficiently trained regarding: the lawful authority search residences and individuals; strip searches; and the ramifications of falsification.

44. Defendant CITY OF NEW YORK is further aware that such improper training has often resulted in a deprivation of civil rights. Despite such notice, defendant CITY OF NEW YORK has failed to take corrective action. This failure caused the officers in the present case to violate the plaintiffs' civil rights.

45. Moreover, upon information and belief, defendant CITY OF NEW YORK was aware, prior to the incident, that the individual defendants lacked the objectivity, temperament, maturity, discretion, and disposition to be employed as police officers. Despite such notice, defendant CITY OF NEW YORK has retained these officers, and failed to adequately train and supervise them.

46. As a result of the foregoing, DAVID ROSS, SHAUN TAYLOR, IBRAHIM ALBEDAWI, and MUHAMMAD ALBEDAWI, sustained, *inter alia*, physical injuries, emotional distress, embarrassment, and humiliation, and deprivation of their constitutional rights.

Federal Claims

**AS AND FOR A FIRST CAUSE OF ACTION
(Deprivation of Rights Under 42 U.S.C. § 1983)**

47. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs “1” through “46” with the same force and effect as if fully set forth herein.

48. All of the aforementioned acts of defendants, their agents, servants and employees were carried out under the color of state law.

49. All of the aforementioned acts deprived plaintiffs of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. §1983.

50. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with the entire actual and/or apparent authority attendant thereto.

51. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.

52. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

53. As a result of the foregoing, plaintiffs DAVID ROSS, SHAUN TAYLOR, IBRAHIM ALBEDAWI, and MUHAMMAD ALBEDAWI are entitled to compensatory

damages in amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A SECOND CAUSE OF ACTION
(False Arrest/Unlawful Imprisonment under 42 U.S.C. § 1983)

54. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered "1" through "53" with the same force and effect as if fully set forth herein.

55. Defendants arrested plaintiffs without probable cause, causing them to be detained against their will for an extended period of time and subjected to physical restraints.

56. Defendants caused plaintiffs to be falsely arrested and unlawfully imprisoned.

57. As a result of the foregoing, plaintiffs DAVID ROSS, SHAUN TAYLOR, IBRAHIM ALBEDAWI, and MUHAMMAD ALBEDAWI are entitled to compensatory damages in amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A THIRD CAUSE OF ACTION
(Unreasonable Search under 42 U.S.C. § 1983)

58. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraph numbered "1" through "57" with the same force and effect as if fully set forth herein.

59. Defendants unreasonably searched plaintiff MUHAMMAD ALBEDAWI by touching plaintiff's rectum and genitalia in public view.

60. Defendants caused MUHAMMAD ALBEDAWI to be unreasonably searched thereby causing plaintiff to suffer emotional distress, embarrassment and humiliation.

61. As a result of the foregoing, plaintiff MUHAMMAD ALBEDAWI is entitled to

compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A FOURTH CAUSE OF ACTION
(Unlawful Entry into the Home 42 U.S.C. § 1983)

62. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "61" with the same force and effect as if fully set forth herein.

63. Upon information and belief, defendants entered plaintiff DAVID ROSS' home without a warrant, and absent probable cause, exigent circumstances, or any lawful justification.

64. As a result plaintiff's right to be free from an unlawful entry into the home via the Fourth Amendment was violated.

65. As a result of the foregoing, plaintiff DAVID ROSS is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A FIFTH CAUSE OF ACTION
(Unlawful Strip Search under 42 U.S.C. §1983)

66. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered "1" through "65" with the same force and effect as if fully set forth herein.

67. Defendants strip searched plaintiff DAVID ROSS in the absence of reasonable individualized suspicion that plaintiff was in possession of weapons or contraband at the time he was searched.

68. Defendants thereby caused plaintiff DAVID ROSS to be deprived of his right to be free from unlawful strip searches.

69. As a result of the foregoing, plaintiff DAVID ROSS is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A SIXTH CAUSE OF ACTION
(Malicious Abuse of Process under 42 U.S.C. § 1983)

70. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered "1" through "69" with the same force and effect as if fully set forth herein.

71. Defendants maliciously issued criminal process against plaintiffs DAVID ROSS and SHAUN TAYLOR by causing them to be arraigned and prosecuted in Criminal Court.

72. Defendants caused plaintiffs DAVID ROSS and SHAUN TAYLOR to be prosecuted in order to obtain a collateral objective outside the legitimate ends of the legal process, to wit: to cover up their abuse of authority.

73. As a result of the foregoing, plaintiffs DAVID ROSS and SHAUN TAYLOR are entitled to compensatory damages in amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A SEVENTH CAUSE OF ACTION
(Malicious Prosecution under 42 U.S.C. § 1983)

74. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered "1" through "73" with the same force and effect as if fully set forth herein.

75. Defendants initiated, commenced and continued a malicious prosecution against plaintiffs DAVID ROSS and SHAUN TAYLOR.

76. Defendants caused DAVID ROSS and SHAUN TAYLOR to be prosecuted

without any probable cause until the charges were dismissed on October 27, 2010.

77. As a result of the foregoing, plaintiffs DAVID ROSS and SHAUN TAYLOR are entitled to compensatory damages in amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR AN EIGHTH CAUSE OF ACTION
(Deliberate Indifference to Serious Medical Needs under 42 U.S.C. § 1983)

78. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs "1" through "77" with the same force and effect as if fully set forth herein.

79. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that was deliberately indifferent to plaintiff DAVID ROSS' serious medical needs by disregarding an excessive risk to the plaintiff's health or safety, which is forbidden by the Constitution of the United States.

80. As a result of the foregoing, plaintiff DAVID ROSS is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A NINTH CAUSE OF ACTION
(Deprivation of Substantive Due Process under 42 U.S.C. § 1983)

81. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "80" with the same force and effect as if fully set forth herein.

82. The defendants conduct herein were an abuse of executive power so clearly unjustified by any legitimate objective of law enforcement as to be barred by the Fourteenth Amendment.

83. As a result of the foregoing, plaintiffs DAVID ROSS, SHAUN TAYLOR, IBRAHIM ALBEDAWI, and MUHAMMAD ALBEDAWI, were deprived of their liberty and right to substantive due process, causing emotional and physical injuries.

84. As a result of the foregoing, plaintiffs DAVID ROSS, SHAUN TAYLOR, IBRAHIM ALBEDAWI, and MUHAMMAD ALBEDAWI are entitled to compensatory damages in amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A TENTH CAUSE OF ACTION
(Violation of the Equal Protection Clause under 42 U.S.C. § 1983)

85. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "84" with the same force and effect as if fully set forth herein.

86. The defendants seized, detained, arrested, and imprisoned plaintiffs because of plaintiffs' national origin, and/or race, or otherwise failed to intervene to prevent such treatment committed in their presence by other NYPD officers.

87. As a result of the foregoing, plaintiffs DAVID ROSS, SHAUN TAYLOR, IBRAHIM ALBEDAWI, and MUHAMMAD ALBEDAWI were deprived of their rights under the Equal Protection Clause of the United States Constitution.

88. As a result of the foregoing, plaintiffs DAVID ROSS, SHAUN TAYLOR, IBRAHIM ALBEDAWI, and MUHAMMAD ALBEDAWI are entitled to compensatory damages in amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR AN ELEVENTH CAUSE OF ACTION
(Failure to Intervene under 42 U.S.C. § 1983)

89. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered “1” through “88” with the same force and effect as if fully set forth herein.

90. Defendants had an affirmative duty to intervene on behalf of plaintiffs DAVID ROSS, SHAUN TAYLOR, IBRAHIM ALBEDAWI, and MUHAMMAD ALBEDAWI, whose constitutional rights were being violated in their presence by other officers.

91. The defendants failed to intervene to prevent the unlawful conduct described herein.

92. As a result of the foregoing, plaintiffs’ liberty was restricted for an extended period of time, they were put in fear of their safety, and they were humiliated and subjected to handcuffing and other physical restraints.

93. As a result of the foregoing, plaintiffs DAVID ROSS, SHAUN TAYLOR, IBRAHIM ALBEDAWI, and MUHAMMAD ALBEDAWI are entitled to compensatory damages in amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney’s fees, costs and disbursements of this action.

AS AND FOR A TWELFTH CAUSE OF ACTION
(Supervisory Liability under 42 U.S.C. § 1983)

94. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered “1” through “93” with the same force and effect as if fully set forth herein.

95. The individual defendants personally caused plaintiffs’ constitutional injury by being deliberately or consciously indifferent to the rights of others in failing to properly supervise and train their subordinate employees.

96. As a result of the foregoing, plaintiffs DAVID ROSS, SHAUN TAYLOR, IBRAHIM ALBEDAWI, and MUHAMMAD ALBEDAWI are entitled to compensatory damages in amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A THIRTEENTH CAUSE OF ACTION
(Municipal Liability under 42 U.S.C. § 1983)

97. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "96" with the same force and effect as if fully set forth herein.

98. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

99. The aforementioned customs, policies, usages, practices, procedures and rules of the New York City Police Department included, but were not limited to: entering premises and/or arresting individuals without probable cause and then committing perjury or manufacturing evidence and/or engaging in falsification in an attempt to convict such individuals; and, unlawfully searching and strip searching individuals. In addition, the CITY OF NEW YORK engaged in a policy, custom or practice of inadequate screening, hiring, retaining, training, and supervising its employees that were the moving force behind the violation of plaintiffs' rights as described herein. As a result of the failure of the CITY OF NEW YORK to properly recruit, screen, train, discipline and supervise its officers, including the individual defendants, defendant CITY OF NEW YORK has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

100. The foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of plaintiffs DAVID ROSS, SHAUN TAYLOR, IBRAHIM ALBEDAWI, and MUHAMMAD ALBEDAWI.

101. The foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiffs DAVID ROSS, SHAUN TAYLOR, IBRAHIM ALBEDAWI, and MUHAMMAD ALBEDAWI, as alleged herein.

102. The foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiffs DAVID ROSS, SHAUN TAYLOR, IBRAHIM ALBEDAWI, and MUHAMMAD ALBEDAWI, as alleged herein.

103. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department, plaintiffs DAVID ROSS, SHAUN TAYLOR, IBRAHIM ALBEDAWI, and MUHAMMAD ALBEDAWI, were unlawfully arrested and maliciously prosecuted.

104. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiffs DAVID ROSS, SHAUN TAYLOR, IBRAHIM ALBEDAWI, and MUHAMMAD ALBEDAWI'S constitutional rights.

105. All of the foregoing acts by defendants deprived plaintiffs DAVID ROSS, SHAUN TAYLOR, IBRAHIM ALBEDAWI, and MUHAMMAD ALBEDAWI, of federally protected rights, including, but not limited to, the right:

A. Not to be deprived of liberty without due process of law;

- B. To be free from false arrest/unlawful imprisonment;
- C. To be free from illegal searches and strip searches;
- D. To be free from malicious prosecution;
- E. To be free from malicious abuse of process;
- F. To be free from deliberate indifference to serious medical need;
- G. To be free from the failure to intervene; and
- H. To receive equal protection under law.

106. As a result of the foregoing, plaintiff DAVID ROSS, SHAUN TAYLOR, IBRAHIM ALBEDAWI, and MUHAMMAD ALBEDAWI are entitled to compensatory damages in amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

Supplemental State Law Claims

107. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "106" with the same force and effect as if fully set forth herein.

108. Within ninety (90) days after the claim herein accrued, plaintiff DAVID ROSS duly served upon, presented to and filed with the CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law 50-e.

109. The CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

110. This action was commenced within one (1) year after the cause of action herein

accrued.

111. Plaintiffs have complied with all conditions precedent to maintain the instant action.

112. This action falls within one or more of the exceptions as outlined in C.P.L.R. 1602.

AS AND FOR A FOURTEENTH CAUSE OF ACTION
(False Arrest under the laws of the State of New York)

113. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered “1” through “112” with the same force and effect as if fully set forth herein.

114. Defendants arrested plaintiffs without probable cause.

115. Plaintiffs were detained against their will for an extended period of time and subjected to physical restraints.

116. As a result of the aforementioned conduct, plaintiffs were unlawfully imprisoned in violation of the laws of the State of New York.

117. As a result of the aforementioned conduct, plaintiffs suffered physical and mental injury, together with embarrassment, humiliation, shock, fright, and loss of freedom.

118. As a result of the foregoing, plaintiffs DAVID ROSS, SHAUN TAYLOR, IBRAHIM ALBEDAWI, and MUHAMMAD ALBEDAWI are entitled to compensatory damages in amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney’s fees, costs and disbursements of this action.

AS AND FOR A FIFTEENTH CAUSE OF ACTION
(Assault under the laws of the State of New York)

119. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered “1” through “118” with the same force and effect as if fully set forth herein.

120. As a result of the foregoing, plaintiffs were placed in apprehension of imminent harmful and offensive bodily contact.

121. As a result of defendants’ conduct, plaintiffs have suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

122. As a result of the foregoing, plaintiffs DAVID ROSS, SHAUN TAYLOR, IBRAHIM ALBEDAWI, and MUHAMMAD ALBEDAWI are entitled to compensatory damages in amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney’s fees, costs and disbursements of this action.

AS AND FOR A SIXTEENTH CAUSE OF ACTION
(Battery under the laws of the State of New York)

123. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered “1” through “122” with the same force and effect as if fully set forth herein.

124. Defendants made offensive contact with plaintiffs without privilege or consent.

125. As a result of defendants’ conduct, plaintiffs have suffered serious physical injuries, pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

126. As a result of the foregoing, plaintiffs DAVID ROSS, SHAUN TAYLOR,

IBRAHIM ALBEDAWI, and MUHAMMAD ALBEDAWI are entitled to compensatory damages in amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A SEVENTEENTH CAUSE OF ACTION
(Malicious Prosecution under the laws of the State of New York)

127. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered "1" through "126" with the same force and effect as if fully set forth herein.

128. Defendants initiated, commenced and continued malicious prosecutions against plaintiffs DAVID ROSS and SHAUN TAYLOR.

129. Defendants caused plaintiffs DAVID ROSS and SHAUN TAYLOR to be prosecuted without probable cause until the charges were dismissed on or about October 27, 2010.

130. As a result of the foregoing, plaintiffs DAVID ROSS and SHAUN TAYLOR are entitled to compensatory damages in amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR AN EIGHTEENTH CAUSE OF ACTION
(Intentional Infliction of Emotional Distress under the laws of the State of New York)

131. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "130" with the same force and effect as if fully set forth herein.

132. The aforementioned conduct was extreme and outrageous, and exceeded all

reasonable bounds of decency.

133. The aforementioned conduct was committed by defendants while acting within the scope of their employment by defendant CITY OF NEW YORK.

134. The aforementioned conduct was committed by defendants while acting in furtherance of their employment by defendant CITY OF NEW YORK.

135. The aforementioned conduct was intentional and for the sole purpose of causing severe emotional distress to plaintiffs.

136. As a result of the aforementioned conduct, plaintiffs suffered emotional distress, together with embarrassment, humiliation, shock, fright, and loss of freedom.

137. As a result of the foregoing, plaintiffs DAVID ROSS, SHAUN TAYLOR, IBRAHIM ALBEDAWI, and MUHAMMAD ALBEDAWI are entitled to compensatory damages in amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A NINETEENTH CAUSE OF ACTION
(Negligent Screening, Hiring, and Retention under the laws of the State of New York)

138. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraph numbered "1" through "137" with the same force and effect as if fully set forth herein.

139. Upon information and belief, defendant CITY OF NEW YORK failed to use reasonable care in the screening, hiring and retention of the aforesaid defendants who conducted and participated in the arrest of plaintiffs.

140. Defendant CITY OF NEW YORK knew, or should have known in the exercise of reasonable care, the propensities of the individual defendants to engage in the wrongful conduct

heretofore alleged in this Complaint.

141. As a result of the foregoing, plaintiff DAVID ROSS is entitled to compensatory damages in amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A TWENTIETH CAUSE OF ACTION
(Negligent Training and Supervision under the laws of the State of New York)

142. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "141" with the same force and effect as if fully set forth herein.

143. Upon information and belief the defendant CITY OF NEW YORK failed to use reasonable care in the training and supervision of the aforesaid defendants who conducted and participated in the arrest and prosecution of plaintiffs.

144. As a result of the foregoing, plaintiff DAVID ROSS is entitled to compensatory damages in amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A TWENTY-FIRST CAUSE OF ACTION
(Negligence under the laws of the State of New York)

145. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "144" with the same force and effect as if fully set forth herein.

146. Plaintiffs' injuries herein were caused by the carelessness, recklessness and negligence of the defendant CITY OF NEW YORK and its employees and agents, who were on

duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

147. As a result of the foregoing, plaintiffs DAVID ROSS, SHAUN TAYLOR, IBRAHIM ALBEDAWI, and MUHAMMAD ALBEDAWI are entitled to compensatory damages in amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A TWENTY-SECOND CAUSE OF ACTION
(Respondeat Superior liability under the laws of the State of New York)

148. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "147" with the same force and effect as if fully set forth herein.

149. Defendant CITY OF NEW YORK is vicariously liable for the acts of its employees and agents who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

150. As a result of the foregoing, plaintiff DAVID ROSS is entitled to compensatory damages in amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A TWENTY-THIRD CAUSE OF ACTION
(Violation of N.Y.S. Constitution Article 1 §11)

151. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "150" with the same force and effect as if fully set forth herein.

152. As a result of defendants' conduct, plaintiffs were deprived of their right to equal protection of laws.

153. As a result of the foregoing, plaintiffs DAVID ROSS, SHAUN TAYLOR, IBRAHIM ALBEDAWI, and MUHAMMAD ALBEDAWI are entitled to compensatory damages in amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A TWENTY-FOURTH CAUSE OF ACTION
(Violation of N.Y.S. Constitution Article 1 §12)

154. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "153" with the same force and effect as if fully set forth herein.

155. As a result of defendants' conduct, plaintiffs were deprived of their right to security against unreasonable searches, seizures, and interceptions.

156. As a result of the foregoing, plaintiffs DAVID ROSS, SHAUN TAYLOR, IBRAHIM ALBEDAWI, and MUHAMMAD ALBEDAWI, are entitled to compensatory damages in amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

WHEREFORE, plaintiffs DAVID ROSS, SHAUN TAYLOR, IBRAHIM ALBEDAWI, and MUHAMMAD ALBEDAWI, demand judgment and pray for the following relief, jointly and severally, against the defendants:

- (A) full and fair compensatory damages in an amount to be determined by a jury;
- (B) punitive damages in an amount to be determined by a jury;
- (C) reasonable attorney's fees and the costs and disbursements of this action; and
- (D) such other and further relief as appears just and proper.

Dated: Brooklyn, New York
November 17, 2011

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By:


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TAYLOR, IBRAHIM ALBEDAWI, and
MUHAMMAD ALBEDAWI

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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DAVID ROSS, SHAUN TAYLOR, IBRAHIM ALBEDAWI, and
MUHAMMAD ALBEDAWI,

Plaintiffs,

-against-

11 CV 1958
(FB)(VVP)

CITY OF NEW YORK, PAUL FAZIO, UNDERCOVER
POLICE OFFICER SHIELD # 105, JOSEPH RYAN,
JAMES MALPESO, STACY MEIGS, MICHAEL FRIEDMAN
STEPHEN RIVAS, ANTHONY REYES, UNDERCOVER
POLICE OFFICER # 109, UNDERCOVER POLICE OFFICER #
210, and JOHN and JANE DOE 1 through 10, individually and in
their official capacities, (the names John and Jane Doe being
fictitious, as the true names are presently unknown),

Defendants.

-----X

AMENDED COMPLAINT

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